

24STCV30984 24STCV30984

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-07-16

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Case Number: 24STCV30984 Hearing Date: July 16, 2026 Dept: 413

TENTATIVE RULING

Vincent

W. Davis, Esq. v. Yazmin Morataya,

No. 24STCV30984

Hearing

Date: July 16, 2026

Proceeding: Plaintiff's Motion for Attorneys Fees, Costs and
Sanctions Pursuant to CCP Sections 128.5 and 128.7

Ruling:

Plaintiff's

Motion is denied. Plaintiff did not
comply with the requirements of section 128.7(c)(1) or section 128.5(f)(1)(B) of
the Code of Civil Procedure. As noted in
J.N. v. Goldberg (2026) 120 Cal.App.5th 544, 549-550:

Section 128.7,
subdivision (c)(1) provides the "[n]otice of motion shall be served as
provided in [s]ection 1010" (*Italics added.*) To comply with section 1010,
a notice of motion "must state when ... it will be made" (§ 1010,
italics added.) Reading these two provisions together, a notice of motion
seeking section 128.7 sanctions must reflect when the motion will be heard. (*Galleria
Plus, Inc. v. Hanmi Bank* (2009) 179 Cal.App.4th 535, 537–538, 101
Cal.Rptr.3d 803 (*Galleria Plus*).) "Section 128.7's incorporation of

section 1010 is compulsory, not permissive.” (Id., at p. 538, 101 Cal.Rptr.3d 803.) If the notice of motion fails to specify when the motion will be made, the document is “render[ed] ... fatally defective. [Citations.]” (Ibid.) Here, the spaces in the October 25, 2024 notice of motion designated for the date and time it was to be heard were left blank, thereby triggering the fatal flaw under sections 128.7 and 1010 as well as Galleria Plus.

The Court

also noted: “The apparent flaw in the CRS [reservation system, which does not permit a party to reserve a hearing date for a motion unless the motion is filed within three days of making the reservation] did not relieve defendant of his obligation under sections 1010 and 128.7 to serve a notice of motion that reflects when the motion will be made.” (Id. at 550.)

J.N. involved a motion under section 128.7. Section 128.5 incorporates the same notice of motion requirement.

The Court

also questions whether Plaintiff’s motion was filed in the correct case. Plaintiff faults Defendant for filing the complaint in the separate action, no. 25STCV24105, but Plaintiff filed the motion for sanctions in this action.

The Court

did not consider Defendant’s late-filed opposition.

For the

reasons stated above, the motion is denied.